



**National Transmission and Despatch Company
Limited (NTDC)**

CONTRACT FOR ENGINEERING CONSULTANCY SERVICES

between

**NATIONAL TRANSMISSION AND DESPATCH COMPANY LIMITED
(NTDC)**

and

**JOINT VENTURE OF
NATIONAL ENGINEERING SERVICES PAKISTAN (PVT.) LIMITED
AND BARQAAB CONSULTING SERVICES (PVT.) LIMITED**

for

**CONSTRUCTION SUPERVISION AND ALLIED ACTIVITIES INCLUDING
VERIFICATION OF CONTRACTOR'S INVOICES AND TESTING &
COMMISSIONING OF 220kV D I KHAN – ZHOB TRANSMISSION LINE
(Approx. 220km) INCLUDED IN ADB LOAN NO. 3577-PAK TRANCHE-II**

December 2019



**NATIONAL ENGINEERING SERVICES
PAKISTAN (PVT.) LIMITED**



**BARQAAB CONSULTING SERVICES
(PVT.) LIMITED**

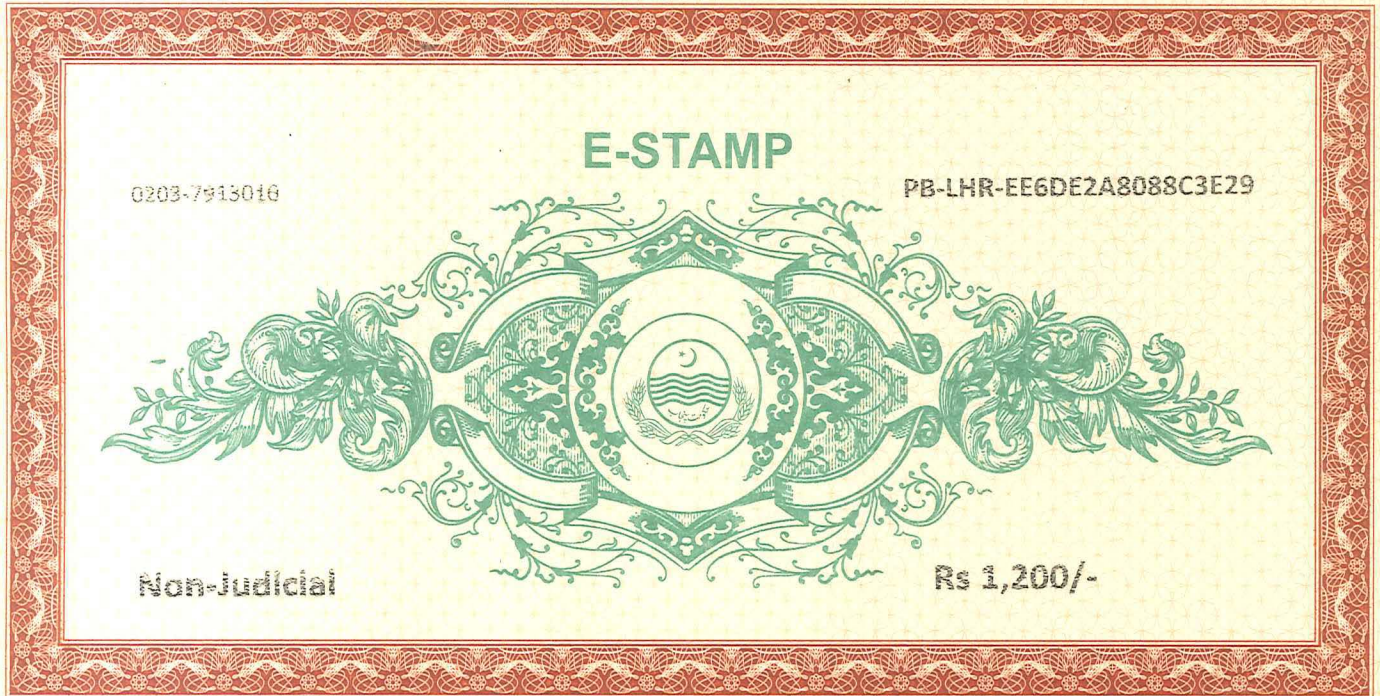
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Description	: CONTRACT - 22A(a)(i)
First Party	: NESPAK Plus BARQAAB JV [30000-0000000-0]
Second Party	: Chief Engineer MP and M NTDC [30000-0000000-0]
Agent	: Muhammad Riaz Anwar [31202-0287335-1]
Stamp Duty Paid by	: Chief Engineer MP and M NTDC [30000-0000000-0]
Issue Date	: 20-Dec-2019, 12:13:31 PM
Paid Through Challan	: 20195589ESC563F6
Amount in Words	: One Thousand Two Hundred Rupees Only

Please Write Below This Line

CONTRACT FOR ENGINEERING CONSULTANCY SERVICES
between
NATIONAL TRANSMISSION AND DESPATCH COMPANY LIMITED (NTDC)
and
JOINT VENTURE OF
NATIONAL ENGINEERING SERVICES PAKISTAN (PVT.) LIMITED
AND BARQAAB CONSULTING SERVICES (PVT.) LIMITED
for
CONSTRUCTION SUPERVISION AND ALLIED ACTIVITIES INCLUDING
VERIFICATION OF CONTRACTOR'S INVOICES AND TESTING &
COMMISSIONING OF 220kV D I KHAN – ZHOB TRANSMISSION LINE (Approx.
220km) INCLUDED IN ADB LOAN NO. 3577-PAK TRANCHE-II

This CONTRACT (hereinafter called the "Contract") is made on the 09th day of December 2019, between, on the one hand, National Transmission and Despatch Company Limited (NTDC) (hereinafter called the "Client" which expression shall include the successors, legal representatives and permitted assigns) and, on the other hand, a joint venture consisting of the following entities, each of which will be jointly and severally liable to the Client for all the Consultants' obligations under this Contract, namely:

1. National Engineering Services Pakistan (Pvt.) Limited (hereinafter called "NESPAK"); and
2. Barqaab Consulting Services (Pvt.) Limited (hereinafter called "BARQAAB")

(hereinafter collectively called the "Consultants" which expression shall include its successors, legal representatives and permitted assigns).

WHEREAS





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CONTINUATION SHEET

- (a) the Client has requested the Consultants to provide certain consulting services as defined in the General Conditions of Contract attached to this Contract (hereinafter called the "Services"); and
- (b) the Consultants, having represented to the Client that they have the required professional skills, and personnel and technical resources, have agreed to provide the Services on the terms and conditions set forth in this Contract;

NOW THEREFORE the Parties hereby agree as follows:

1. The following documents attached hereto shall be deemed to form an integral part of this Contract:
- (a) the General Conditions of Contract;
- (b) the Special Conditions of Contract;
- (c) the following Appendices:
Appendix A: Description of Services
Appendix B: Reporting Requirements
Appendix C: Key Personnel and Sub-consultants
Appendix D: Breakdown of Contract Price in Foreign Currency (Not Used)
Appendix E: Breakdown of Contract Price in Local Currency
Appendix F: Services & Facilities to be provided by the Client and Counterpart Personnel to be made available to the Consultants by the Client.
Appendix G: Integrity Pact
Appendix H: Form of Advance Payment Guarantee (Not Used)
2. The mutual rights and obligations of the Client and the Consultants shall be as set forth in the Contract, in particular:
- (a) the Consultants shall carry out the Services in accordance with the provisions of the Contract; and
- (b) the Client shall make payments to the Consultants in accordance with the provisions of the Contract.

IN WITNESS WHEREOF, the Parties hereto have caused this Contract to be signed in their respective names in two identical parts each of which shall be deemed as the original, as of the day, month and year first above written.

Witness
Signature

Name AZhar Iqbal Anjum

Title Manager (Material Control)
% CE (MP&M) NTDC

For and on behalf of
National Transmission and Despatch Company
Limited (NTDC)
(the Client)

Signature

Name

Title

ASHARALI
Chief Engineer (MP&M) NTDC
8th Floor Shaheen Complex
Egerton Road, Lahore

(Seal)





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CONTINUATION SHEET

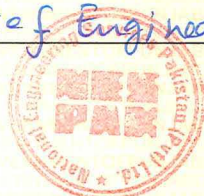
For and on behalf of
NESPAK-BARQAAB JV (the Consultants)

(i) National Engineering Services Pakistan (Pvt.)
Limited (NESPAK)

Witness
Signature _____

Name Khurshaed Ahmad.

Title Chief Engineer, P&M



Signature [Signature]
Name Nadeem Ashraf
General Manager / Head
(Power & Mechanical Division/
NESPAK, Nespak House
Lahore

Title _____

(Seal)

(ii) Barqaab Consulting Services (Pvt.) Limited
(BARQAAB)

Witness
Signature Rafae

Name RAFAE MUNIR.

Title Electrical Engineer,
BARQAAB.

Signature [Signature]
Name ENGR. MUHAMMAD ZAFAR
Executive Director/General Manager (Power)
BARQAAB Consulting Services (Pvt.) Ltd.
Sunny View Wala, Kashmir Road, Lahore

Title _____

(Seal)

II. GENERAL CONDITIONS OF CONTRACT

1. GENERAL PROVISIONS

1.1 Definitions

Unless the context otherwise requires, the following terms whenever used in this Contract have the following meanings:

- (a) "Applicable Law" means the laws and any other instruments having the force of law in the Islamic Republic of Pakistan, as those may be issued and in force from time to time;
- (b) "Contract" means the Contract signed by the Parties, to which these General Conditions of Contract (GC) are attached, together with all the documents listed in Clause 1 of such signed Contract;
- (c) "Contract Price" means the price to be paid for the performance of the Services, in accordance with Clause 6;
- (d) "Effective Date" means the date on which this Contract comes into force and effect pursuant to Sub-Clause 2.1;
- (e) "GC" means these General Conditions of Contract;
- (f) "Government" means the Government of the Islamic Republic of Pakistan;
- (g) "Foreign Currency" means currency other than the currency of Islamic Republic of Pakistan;
- (h) "Local Currency" means the currency of the Islamic Republic of Pakistan;
- (i) "Member" in case the Consultants consist of a joint venture of more than one entity, means any of the entities, and "Members" means all of these entities;
- (j) "Party" means the Client or the Consultants, as the case may be, and "Parties" means both of them;
- (k) "Personnel" means persons hired by the Consultants or by any Subconsultant as employees and assigned to the performance of the Services or any part thereof;
- (l) "SC" means the Special Conditions of Contract by which the GC are amended or supplemented;
- (m) "Services" means the work to be performed by the Consultants pursuant to this Contract, as described in Appendix A;



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- (n) "Subconsultant" means any entity to which the Consultants subcontract any part of the Services in accordance with the provisions of Sub-Clause 3.6;
- (o) "Third Party" means any person or entity other than the Client, the Consultants or a Subconsultant; and
- (p) "Project" means the work specified in SC for which engineering consultancy services are desired.

1.2 Law Governing the Contract

This Contract, its meaning and interpretation, and the relation between the Parties shall be governed by the Applicable Law.

1.3 Language

This Contract has been executed in the English language which shall be the binding and controlling language for all matters relating to the meaning or interpretation of this Contract. All the reports and communications shall be in the English language.

1.4 Notices

Any notice, request, or consent made pursuant to this Contract shall be in writing and shall be deemed to have been made when delivered in person to an Authorised Representative of the Party to whom the communication is addressed, or when sent by registered mail, telex, or facsimile to such Party at the address of the Authorised Representative specified under Sub-Clause SC 1.6. A Party may change its address for notice hereunder by giving the other Party notice of such change.

1.5 Location

The Services shall be performed at such locations as are specified in Appendix A and, where the location of a particular task is not so specified, at such locations as mutually agreed by the Parties.

1.6 Authorised Representatives

Any action required or permitted to be taken, and any document required or permitted to be executed, under this Contract by the Client or the Consultants shall be taken or executed by the Authorised Representatives specified in the SC.

1.7 Taxes

Unless specified in the SC, the Consultants, Subconsultants, and their Personnel shall pay such taxes, fees, and other impositions as may be levied under the Applicable Law.



1.8 Leader of Joint Venture

In case the Consultants consist of a joint venture of more than one entity, the Consultants shall be jointly and severally bound to the Client for fulfillment of the terms of the Contract and designate the Member named in SC, to act as leader of the Joint Venture, for the purpose of receiving instructions from the Client.

1.9 Relation between the Parties

Nothing contained herein shall be construed as establishing a relation of master and servant or of principal and agent as between the Client and the Consultants. The Consultants, subject to this Contract, have complete charge of Personnel and Subconsultants, if any, performing the Services and shall be fully responsible for the Services performed by them or on their behalf hereunder.

1.10 Headings

The headings shall not limit, alter or affect the meaning of this Contract.

2. COMMENCEMENT, COMPLETION, MODIFICATION, AND TERMINATION OF CONTRACT

2.1 Effectiveness of Contract

This Contract shall come into force and effect on the date (the "Effective Date") of the Client's notice to the Consultants instructing the Consultants to begin carrying out the Services. This notice shall confirm that the effectiveness conditions, if any, listed in the SC have been met.

2.2 Termination of Contract for Failure to Become Effective

If this Contract has not become effective within such time period after the date of the Contract signed by the Parties as shall be specified in the SC, either Party may, by not less than twenty eight (28) days written notice to the other Party, declare this Contract to be null and void, and in the event of such a declaration by either Party, neither Party shall have any claim against the other Party except for the work (if any) already done or costs already incurred by a Party at the request of the other Party.

2.3 Commencement of Services

The Consultants shall begin carrying out the Services at the end of such time period after the Effective Date as shall be specified in the SC.



2.4 Expiration of Contract

Unless terminated earlier pursuant to Sub-Clause 2.9, this Contract shall expire when, pursuant to the provisions hereof, the Services have been completed and the payments of remunerations including the direct costs if any, have been made. The Services shall be completed within a period as is specified in the SC, or such extended time as may be allowed under Sub-Clause 2.6.

The term "Completion of Services" is as specified in the SC.

2.5 Modification

Modification of the terms and conditions of this Contract, including any modification of the scope of the Services or of the Contract Price, may only be made in writing, which shall be mutually agreed and signed by both the Parties.

2.6 Extension of Time for Completion

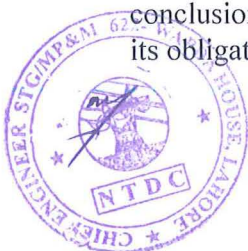
If the scope or duration of the Services is increased:

- (a) the Consultants shall inform the Client of the circumstances and probable effects;
- (b) the increase shall be regarded as Additional Services; and
- (c) the Client shall extend the time for Completion of the Services accordingly.

2.7 Force Majeure

2.7.1 Definition

- (a) For the purposes of this Contract, "Force Majeure" means an event which is beyond the reasonable control of a Party and which makes a Party's performance of its obligations under the Contract impossible or so impractical as to be considered impossible under the circumstances, and includes, but is not limited to, war, riots, civil disorder, earthquake, fire, explosion, storm, flood or other adverse weather conditions, strikes, lockouts or other industrial actions (except where such strikes, lockouts or other industrial actions are within the power of the Party invoking Force Majeure to prevent), confiscation or any other action by government agencies.
- (b) Force Majeure shall not include (i) any event which is caused by the negligence or intentional action of a Party or such Party's Subconsultants or agents or employees, nor (ii) any event which a diligent Party could reasonably have been expected to both (A) take into account at the time of the conclusion of this Contract and (B) avoid or overcome in the carrying out of its obligations hereunder.



- (c) Force Majeure shall not include insufficiency of funds or failure to make any payment required hereunder.

2.7.2 No Breach of Contract

The failure of a Party to fulfill any of its obligations under the Contract shall not be considered to be a breach of, or default under this Contract insofar as such inability arises from an event of Force Majeure, provided that the Party affected by such an event; (a) has taken all reasonable precautions, due care and reasonable alternative measures in order to carry out the terms and conditions of this Contract; and (b) has informed the other Party in writing not later than fifteen (15) days following the occurrence of such an event.

2.7.3 Extension of Time

Any period within which a Party shall, pursuant to this Contract, complete any action or task, shall be extended for a period equal to the time during which such Party was unable to perform such action as a result of Force Majeure.

2.7.4 Payments

During the period of their inability to perform the Services as a result of an event of Force Majeure, the Consultants shall be entitled to continue to be paid under the terms of this Contract, as well as to be reimbursed for additional costs reasonably and necessarily incurred by them during such period for the purpose of the Services and in reactivating the Services after the end of such period.

2.8 Suspension of Payments by the Client

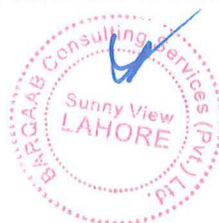
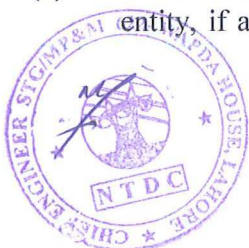
The Client may, by written notice of suspension to the Consultants, suspend all payments to the Consultants hereunder if the Consultants fail to perform any of their obligations under this Contract, including the carrying out of the Services, provided that such notice of suspension (i) shall specify the nature of the failure, and (ii) shall request the Consultants to remedy such failure within a period not exceeding thirty (30) days after receipt by the Consultants of such notice of suspension.

2.9 Termination

2.9.1 By the Client

The Client may terminate this Contract, by not less than thirty (30) days written notice of termination to the Consultants, to be given after the occurrence of any of the events specified in paragraphs (a) through (e) of this Sub-Clause 2.9.1 and sixty (60) days in the case of the event referred to in paragraph (f):

- (a) if the Consultants do not remedy a failure in the performance of their obligations under the Contract, within thirty (30) days after being notified or within any further period as the Client may have subsequently approved in writing;
- (b) if the Consultants become (or, if the Consultants consist of more than one entity, if any of their Members becomes) insolvent or bankrupt or enter into



any agreements with their creditors for relief of debt or take advantage of any law for the benefit of debtors or go into liquidation or receivership whether compulsory or voluntary;

- (c) if the Consultants fail to comply with any final decision reached as a result of arbitration proceedings pursuant to Clause 8 hereof;
- (d) if the Consultants submit to the Client a statement which has a material effect on the rights, obligations or interests of the Client and which the Consultants know to be false;
- (e) if, as the result of Force Majeure, the Consultants are unable to perform a material portion of the Services for a period of not less than sixty (60) days;
- (f) if the Client, in its sole discretion, decides to terminate this Contract.

2.9.2 By the Consultants

The Consultants may terminate this Contract, by not less than thirty (30) days written notice to the Client, such notice to be given after the occurrence of any of the events specified in paragraphs (a) through (d) of this Sub-Clause 2.9.2:

- (a) if the Client fails to pay any monies due to the Consultants pursuant to this Contract and not subject to dispute pursuant to Clause 8 within forty-five (45) days after receiving written notice from the Consultants that such payment is overdue;
- (b) if the Client is in material breach of its obligations pursuant to this Contract and has not remedied the same within forty-five (45) days (or such longer period as the Consultants may have subsequently approved in writing) following the receipt by the Client of the Consultants' notice specifying such breach;
- (c) if, as a result of Force Majeure, the Consultants are unable to perform a material portion of the Services for a period of not less than sixty (60) days;
- (d) if the Client fails to comply with any final decision reached as a result of arbitration proceedings pursuant to Clause 8 hereof.

2.9.3 Cessation of Services

Upon receipt of notice of termination under Sub-Clause 2.9.1, or giving of notice of termination under Sub-Clause 2.9.2, the Consultants shall take all necessary steps to bring the Services to a close in a prompt and orderly manner and shall make every reasonable effort to keep expenditures for this purpose to a minimum. With respect to documents prepared by the Consultants, and equipment and materials furnished by the Client, the Consultants shall proceed as provided, respectively, by Sub-Clauses 3.8 or 3.9.



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2.9.4 Payment upon Termination

Upon termination of this Contract pursuant to Sub-Clauses 2.9.1 or 2.9.2, the Client shall make the following payments to the Consultants:

- (a) remuneration and reimbursable direct costs expenditure pursuant to Clause 6 for Services satisfactorily performed prior to the effective date of termination. Effective date of termination for purposes of this Sub-Clause means the date when the prescribed notice period would expire;
- (b) except in the case of termination pursuant to paragraphs (a) through (d) of Sub-Clause 2.9.1, reimbursement of any reasonable cost incidental to the prompt and orderly termination of the Contract, including the cost of the return travel of the Personnel, according to Consultants Traveling Allowance Rules.

2.9.5 Disputes about Events of Termination

If either Party disputes whether an event specified in paragraphs (a) through (e) of Sub-Clause 2.9.1 or in paragraphs (a) through (d) of Sub-Clause 2.9.2 hereof has occurred, such Party may, within forty-five (45) days after receipt of notice of termination from the other Party, refer the matter to arbitration pursuant to Clause 8 hereof, and this Contract shall not be terminated on account of such event except in accordance with the terms of any resulting arbitral award.

3. OBLIGATIONS OF THE CONSULTANTS

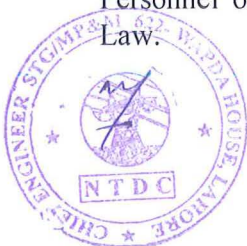
3.1 General

3.1.1 Standard of Performance

The Consultants shall perform the Services and carry out their obligations with all due diligence, efficiency, and economy, in accordance with generally accepted professional techniques and practices, and shall observe sound management practices, and employ appropriate advanced technology and safe methods. The Consultants shall always act, in respect of any matter relating to this Contract or to the Services, as faithful advisers to the Client, and shall at all times support and safeguard the Client's legitimate interests in any dealings with Subconsultants or third parties.

3.1.2 Law Governing Services

The Consultants shall perform the Services in accordance with the Applicable Law and shall take all practicable steps to ensure that any Subconsultants, as well as the Personnel of the Consultants and any Subconsultants, comply with the Applicable Law.



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3.2 Consultants Not to Benefit from Commissions, Discounts, etc.

The remuneration of the Consultants pursuant to Clause 6 shall constitute the Consultants' sole remuneration in connection with this Contract or the Services, and the Consultants shall not accept for their own benefit any trade commission, discount, or similar payment in connection with activities pursuant to this Contract or to the Services or in the discharge of their obligations under the Contract, and the Consultants shall use their best efforts to ensure that the Personnel, any Sub consultants, and agents of either of them similarly shall not receive any such additional remuneration.

3.3 Confidentiality

The Consultants, their Subconsultants, and the Personnel of either of them shall not, either during the term or after the expiration of this Contract, disclose any proprietary or confidential information relating to the Project, the Services, this Contract, or the Client's business or operations without the prior written consent of the Client.

3.4 Liability of the Consultants

The Consultants are liable for the consequence of errors and omissions on their part or on the part of their employees in so far as the design of the Project is concerned to the extent and with the limitations as mentioned herein below.

If the Client suffers any losses or damages as a result of proven faults, errors or omissions in the design of a project, the Consultants shall make good such losses or damages, subject to the conditions that the maximum liability as aforesaid shall not exceed twice the total remuneration of the Consultants for design phase in accordance with the terms of the Contract.

The liability of the Consultants expires after one (1) year from the stipulated date of completion of construction or after three (3) years from the date of final completion of the design whichever is earlier.

The Consultants may, to protect themselves, insure themselves against their liabilities but this is not obligatory. The extent of the insurance shall be up to the limit specified in second para above. The Consultants shall procure the necessary cover before commencing the Services and the cost of procuring such cover shall be borne by the Consultants up to a limit of one percent of the total remuneration of the Consultants for the design phase for every year of keeping such cover effective.

The Consultants shall, at the request of the Client, indemnify the Client against any or all risks arising out of the furnishing of professional services by the Consultants to the Client, not covered by the provisions contained in the first para above and exceeding the limits set forth in second para above provided the actual cost of procuring such indemnity as well as costs exceeding the limits set forth in fourth para above shall be borne by the Client.



3.5 Other Insurances to be Taken out by the Consultants

In addition to the insurance stated in Sub-Clause 3.4 above, the Consultants shall take out and maintain the various insurances as are specified in the SC, at the cost and expense of the Client.

3.6 Consultants' Actions Requiring Client's Prior Approval

The Consultants shall obtain the Client's prior approval in writing before taking any of the following actions:

- (a) appointing such Personnel as are listed in Appendix-C merely by title but not by name;
- (b) entering into a subcontract for the performance of any part of the Services, it being understood (i) that the selection of Subconsultants and the terms and conditions of the subcontract shall have been approved in writing by the Client prior to the execution of the subcontract, and (ii) that the Consultants shall remain fully liable for the performance of the Services by the Subconsultants and its Personnel pursuant to this Contract;
- (c) any other action that may be specified in the SC.

3.7 Reporting Obligations

The Consultants shall submit to the Client the reports and documents specified in Appendix B in the form, in the numbers, and within the periods set forth in the said Appendix.

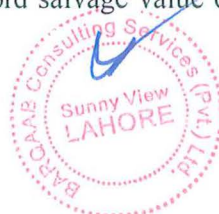
3.8 Documents Prepared by the Consultants to be the Property of the Client

All plans, drawings, specifications, reports, and other documents and software prepared by the Consultants in accordance with Sub-Clause 3.7 shall become and remain the property of the Client, and the Consultants shall, not later than upon termination or expiration of this Contract, deliver (if not already delivered) all such documents and software to the Client, together with a detailed inventory thereof. The Consultants may retain a copy of such documents and software.

Restriction(s) about the future use of these documents, is specified in the SC.

3.9 Equipment and Materials Furnished by the Client

Equipment and materials made available to the Consultants by the Client, or purchased by the Consultants with funds provided by the Client, shall be the property of the Client and shall be marked accordingly. Upon termination or expiration of this Contract, the Consultants shall make available to the Client an inventory of such equipment and materials and shall dispose of such equipment and materials in accordance with the Client's instructions or afford salvage value of the same. While



in possession of such equipment and materials, the Consultants, unless otherwise instructed by the Client in writing, shall insure them at the expense of the Client in an amount equal to their full replacement value.

3.10 Accounting, Inspection and Auditing

The Consultants (i) shall keep accurate and systematic accounts and records in respect of the Services hereunder, in accordance with internationally accepted accounting principles and in such form and detail as will clearly identify all relevant time charges, and cost, and the basis thereof, and (ii) shall permit the Client or its designated representatives periodically, and up to one year from the expiration or termination of this Contract, to inspect the same and make copies thereof as well as to have them audited by auditors appointed by the Client.

4. CONSULTANTS' PERSONNEL AND SUBCONSULTANTS

4.1 General

The Consultants shall employ and provide such qualified and experienced Personnel and Subconsultants as are required to carry out the Services.

4.2 Description of Personnel

- (a) The title, activities of job description and estimated period of engagement in the carrying out of the Services of each of the Consultants' Personnel are described in Appendix C.
- (b) Adjustment with respect to the estimated periods of engagement of various salary grades of the Personnel set forth in Appendix C may be made by the Consultants in accordance with the actual requirements of the Contract to ensure efficient performance of the Services, provided that the aggregate of such adjustments shall not cause payments under this Contract to exceed the ceilings set forth in Sub-Clause 6.1(a) of this Contract.

4.3 Approval of Personnel

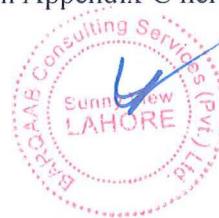
The Key Personnel and Subconsultants listed by title as well as by name in Appendix C are deemed to be approved by the Client. In respect of other Key Personnel which the Consultants propose to use in carrying out of the Services, the Consultants shall submit to the Client for review and approval a copy of their biographical data. If the Client does not object in writing (stating the reasons for the objection) within fourteen (14) calendar days from the date of receipt of such biographical data, such Key Personnel shall be deemed to have been approved by the Client.

4.4 Working Hours, Leave, Overtime, etc.

Working Hours for Key Personnel are set forth in Appendix-C hereto.



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Except for the staff covered under reimbursable direct costs expenditure, the Consultants' remuneration given in Appendix D and Appendix E shall be deemed to cover paid casual leave, sick leave and earned leave. The Client will reimburse overtime payments to eligible Personnel provided by the Consultants, in respect of support staff and work charged staff. Any taking of leave by Personnel shall be subject to the prior approval by the Consultants who shall ensure that absence for leave purposes will not delay the progress and adequate supervision of the Services. Such leave taking of the Authorised Representative of the Consultants at site, if any, shall be preceded by the Client informed in writing.

4.5 Removal and/or Replacement of Personnel

- (a) Except as the Client may otherwise agree, no changes shall be made in the Key Personnel. If, for any reason beyond the reasonable control of the Consultants, it becomes necessary to replace any of the Key Personnel, the Consultants shall provide as a replacement a person of equivalent or better qualifications.
- (b) If the Client; (i) finds that any of the Personnel has committed serious misconduct or has been charged with having committed a criminal action; or (ii) has reasonable cause to be dissatisfied with the performance of any of the Personnel, then the Consultants shall, at the Client's written request specifying the grounds therefor, provide as a replacement a person with qualifications and experience acceptable to the Client.
- (c) Any of the Personnel provided as a replacement under Sub-Clauses (a) and (b) above, the rate of remuneration applicable to such person as well as any reimbursable expenditures (including expenditures due to the number of eligible dependents) the Consultants may wish to claim as a result of such replacement, shall be subject to the prior written approval by the Client. Except as the Client may otherwise agree, (i) the Consultants shall bear all additional travel and other costs arising out of or incidental to any removal and/or replacement, and (ii) the remuneration to be paid for any of the Personnel provided as a replacement shall not exceed the remuneration which would have been payable to the Personnel replaced.

4.6 Resident Engineer

If required by the SC, the Consultants shall ensure that at all times during the Consultants' performance of the Services, a Resident Engineer acceptable to the Client, shall take charge of the performance of such Services



5. OBLIGATIONS OF THE CLIENT

5.1 Assistance, Coordination and Approvals

5.1.1 Assistance

The Client shall use its best efforts to ensure that the Client shall:

- (a) provide at no cost to the Consultants, Subconsultants and Personnel such documents prepared by the Client or other consulting engineers appointed by the Client as shall be necessary to enable the Consultants, Subconsultants or Personnel to perform the Services. The documents and the time within which such documents shall be made available, are as specified in the SC;
- (b) assist to obtain the existing data relevant to the carrying out of the Services, with various Government and other organisations. Such items shall be returned by the Consultants upon completion of the Services under this Contact;
- (c) issue to officials, agents and representatives of the concerned organisations, all such instructions as may be necessary or appropriate for prompt and effective implementation of the Services;
- (d) provide to the Consultants, Subconsultants, and Personnel any such other assistance and exemptions as may be specified in the SC;
- (e) assist to obtain permits which may be required for right-of-way, entry upon the lands and properties for the purposes of this Contract.

5.1.2 Co-ordination

The Client shall:

- (a) coordinate and get or expedite any necessary approval and clearances relating to the work from any Government or Semi-Government Agency, Department or Authority, and other concerned organisation named in the SC.
- (b) coordinate with any other consultants employed by him.

5.1.3 Approvals

The Client shall accord approval of the documents within such time as specified in the SC, whenever these are applied for by the Consultants.

5.2 Access to Land

The Client warrants that the Consultants shall have, free of charge, unimpeded access to all land of which access is required for the performance of the Services.



5.3 Change in the Applicable Law

If, after the date of this Contract, there is any change in the Applicable Law which increases or decreases the cost of the Services rendered by the Consultants, then the remunerations and direct costs otherwise payable to the Consultants under this Contract shall be increased or decreased accordingly, and corresponding adjustment shall be made to the amounts referred to in Sub-Clause 6.1 (a). Rate in the Appendix-E shall be revised in case of revision in salary made in an organization due to statutory Notification. Such revised rate(s) shall be applicable from the respective date(s) of implementation of such Notification by the concerned organizations for which necessary proof shall be provided to the Client.

5.4 Services and Facilities

The Client shall make available to the Consultants, Subconsultants and the Personnel, for the purpose of the Services and free of any charge, the services, facilities and property described in Appendix F at the times and in the manner specified in said Appendix F, provided that if such services, facilities and property shall not be made available to the Consultants as and when so specified, the Parties shall agree on; (i) any time extension that it may be appropriate to grant to the Consultants for the performance of the Services; (ii) the manner in which the Consultants shall procure any such services, facilities and property from other sources; and (iii) the additional payments, if any, to be made to the Consultants as a result thereof pursuant to Sub-Clause 6.1(b) hereinafter.

5.5 Payments

In consideration of the Services performed by the Consultants under this Contract, the Client shall make to the Consultants such payments and in such manner as is provided by Clause 6 of this Contract.

5.6 Counterpart Personnel

- (a) If so provided in Appendix-F hereto, the Client shall make available to the Consultants, as and when provided in such Appendix-F, and free of charge, such counterpart personnel to be selected by the Client, with the Consultants' advice, as shall be specified in such Appendix-F. Counterpart personnel shall work under the exclusive direction of the Consultants. If any member of the counterpart personnel fails to perform adequately any work assigned to such member by the Consultants which is consistent with the position occupied by such member, the Consultants may request the replacement of such member, and the Client shall not unreasonably refuse to act upon such request.
- (b) If counterpart personnel are not provided by the Client to the Consultants as and when specified in Appendix-F, the Client and the Consultants shall agree on; (i) how the affected part of the Services shall be carried out; and (ii) the



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additional payments, if any, to be made by the Client to the Consultants as a result thereof pursuant to Sub-Clause 6.1(c) hereof.

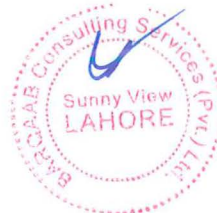
6. PAYMENTS TO THE CONSULTANTS

6.1 Cost Estimates, Ceiling Amount

- (a) An estimate of the cost of Services payable in foreign and local currencies is set forth in Appendices D and E respectively. Except as may be otherwise agreed under Sub-Clause 2.5 and subject to Sub-Clause 6.1 (b), payments under this Contract shall not exceed the ceilings in foreign currency in Appendix D and in local currency in Appendix E, excluding adjustments made under Sub-Clause 6.2(a) of the SC. The Consultants shall notify the Client as soon as cumulative charges incurred for the Services have reached 80% of either of these ceilings.
- (b) Notwithstanding Sub-Clause 6.1(a) hereof, if pursuant to any of the Sub-Clauses 5.3, 5.4 or 6.6 hereof, the Parties shall agree that additional payments in local and/or foreign currency, as the case may be, shall be made to the Consultants in order to cover any necessary additional expenditures relating to remuneration not envisaged in the cost estimates referred to in Sub-Clause 6.1(a) above, and the ceiling or ceilings, as the case may be, set forth in Sub-Clause 6.1(a) above shall be increased by the amount or amounts, as the case may be, of any such additional payments.
- (c) Notwithstanding Sub-Clause 6.1(b) hereof, if pursuant to any of the Sub-Clauses 5.3, 5.4 or 5.6 hereof, the Parties shall agree that additional payments in local and/or foreign currency, as the case may be, shall be made to the Consultants in order to cover any necessary additional expenditures relating to reimbursable direct cost not envisaged in the cost estimates referred to in Sub-Clause 6.1(a) above, the ceiling or ceilings, as the case may be, set forth in Sub-Clause 6.1(b) above shall be increased by the amount or amounts, as the case may be, of any such additional payments.

6.2 Remuneration and Reimbursable Direct Costs (Non-salary Costs)

- (a) Subject to the ceilings specified in Sub-Clause 6.1(a) hereof, the Client shall pay to the Consultants; (i) remuneration as set forth in Sub-Clause 6.2(b); and (ii) reimbursable direct costs expenditure as set forth in Sub-Clause 6.2(c). Remuneration shall be subject to price adjustment as specified in the SC.
- (b) Remuneration for the Personnel shall be determined on the basis of time actually spent by such Personnel in the performance of the Services after the date determined in accordance with Sub-Clause SC 2.3 (including time for necessary travel via the most direct route) at the rates referred to, and subject to such additional provisions as are set forth in the SC.



- (c) Reimbursable direct costs (non-salary costs) actually and reasonably incurred by the Consultants in the performance of the Services. The reimbursable direct costs expenditure shall be for the items specified in the SC.

6.3 Currency of Payment

- (a) Foreign currency payment shall be made in the currency or currencies specified as foreign currency or currencies in Appendix D, and local currency payment shall be made in Pakistani Rupees.
- (b) The SC shall specify which items of remuneration and reimbursable expenditures shall be paid, respectively, in foreign and in local currency.

6.4 Mode of Billing and Payment

Billing and payments in respect of the Services shall be made as follows:

- (a) To cover payments due under Sub-Clauses 6.1 and 6.2 of this Contract, the Client shall establish a revolving fund in foreign currency and local currency accounts, each account to be separately and distinctly maintained by the Consultants, and shall deposit into the said accounts, amounts in the currencies specified above as follows:
- (i) Not later than thirty (30) days following the signing of Contract by both the Parties amounts estimated to be the requirements in the respective currencies for the three (3) months of the Services immediately following the signing of Contract calculated on the basis of the applicable estimates set forth in Appendices D and E.
- (ii) Not later than the 15th day of each succeeding month, the amount equal to the preceding monthly estimate in accordance with Appendices D and E shall be recouped by the Client in the revolving fund against foreign currency and local currency amounts.

Any bank interest accruing in a revolving fund shall be credited by the Consultants to the Client.

- (b) As soon as practicable and preferably within thirty (30) days after the end of each calendar month during the period of the Services, the Consultants shall submit to the Client, in duplicate, itemized statements, accompanied by copies of receipted invoices, vouchers and other appropriate supporting materials, of the amounts payable pursuant to Sub-Clauses 6.3 and 6.4 for such month. Separate monthly statements shall be submitted in respect of amounts payable in foreign currency and in local currency. Monthly statement shall distinguish that portion of the total eligible costs which pertains to remuneration from that portion which pertains to reimbursable direct costs expenditure.



In case of a joint venture, separate monthly statements shall be submitted in respect of amounts payable to each Member of the joint venture of the Consultants.

- (c) The Client shall cause the payment of the Consultants' monthly statements within twenty-eight (28) days for amounts in local currency and within fifty six (56) days for amounts in foreign currency after the receipt by the Client of such statements with supporting documents. Only such portion of a monthly statement that is not satisfactorily supported may be withheld from payment. Should any discrepancy be found to exist between actual payment and costs authorized to be incurred by the Consultants, the Client, after seeking clarification from the Consultants, may add or subtract the difference from any subsequent payments.
- (d) The final payment under this Clause shall be made only after the final report and a final statement, identified as such, shall have been submitted by the Consultants and approved as satisfactory by the Client. The Services shall be deemed completed and finally accepted by the Client and the final report and final statement shall be deemed approved by the Client as satisfactory ninety (90) calendar days after receipt of the final report and final statement by the Client unless the Client, within such ninety (90) days period, gives written notice to the Consultants specifying in detail deficiencies in the Services, the final report or final statement. The Consultants shall thereupon promptly make any necessary corrections, and upon completion of such corrections, the foregoing process shall be repeated. Any amount which the Client has paid or caused to be paid in accordance with this Clause in excess of the amounts actually payable in accordance with the provisions of this Contract shall be reimbursed by the Consultants to the Client within thirty (30) days after receipt by the Consultants of notice thereof. Any such claim by the Client for reimbursement must be made within fifty six (56) days after receipt by the Client of a final report and a final statement approved by the Client in accordance with the above. The Client shall cause the final payment to the Consultants within fifty six (56) days of receipt of final invoice from the Consultants, after completion of Services finally accepted alongwith the final report and statement of the Consultants by the Client.
- (e) All payments under this Contract shall be made to the bank account of the Consultants to be notified later.

6.5 Delayed Payments

If the Client has delayed payments beyond the period stated in paragraph (c) of Sub-Clause 6.4, interest charges shall be paid to the Consultants for each day of delay at the rate specified in the SC.



6.6 Additional Services

Additional Services means:

- (a) Services as approved by the Client outside the Scope of Services described in Appendix A;
- (b) Services to be performed during the period extended pursuant to Sub-Clause 2.6, beyond the original schedule time for completion of the Services; and
- (c) any re-doing of any part of the Services as a result of client's instructions.

If, in the opinion of the Client, it is necessary to perform Additional Services during the currency of the Contract for the purpose of the Project, the Consultants, with the prior written authorization of the Client, shall carry out such Additional Services on the basis of the billing rates set out in the Contract. In case for any reasons these rates and prices are determined by both the Parties to be not applicable for said Additional Services, then suitable billing rates and the additional time, shall be agreed upon between the Client and the Consultants.

6.7 Consultants' Entitlement to Suspend Services

If the Client fails to make the payment of any of the Consultants' invoice within twenty-eight (28) days after the expiry of the time stated in paragraph (c) of Sub-Clause 6.4, within which payment is to be made, the Consultants may after giving not less than twenty-eight (28) days' prior notice to the Client, suspend the Services or reduce the rate of carrying out the Services, unless and until the Consultants have received the payment.

This action will not prejudice the Consultants' entitlement to financing charges under Sub-Clause 6.5.

7. FAIRNESS AND GOOD FAITH

7.1 Good Faith

The Parties undertake to act in good faith with respect to each other's rights under this Contract and to adopt all reasonable measures to ensure the realization to the objectives of this Contract.

7.2 Operation of the Contract

The Parties recognize that it is impractical in this Contract to provide for every contingency which may arise during the life of the Contract, and the Parties hereby agree that it is their intention that this Contract shall operate fairly as between them, and without detriment to the interest of either of them, and that, if during the term of this Contract either Party believes that this Contract is operating unfairly, the Parties will use their best efforts to agree on such action as may be necessary to remove the



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cause or causes of such unfairness, but no failure to agree on any action pursuant to this Sub-Clause shall give rise to a dispute subject to arbitration in accordance with Clause 8 hereof.

8. SETTLEMENT OF DISPUTES

8.1 Amicable Settlement

The Parties shall use their best efforts to settle amicably all disputes arising out of or in connection with this Contract or its interpretation.

8.2 Dispute Settlement

Any dispute between the Parties as to matters arising pursuant to this Contract which cannot be settled amicably within thirty (30) days after receipt by one Party of the other Party's request for such amicable settlement may be submitted by either Party for settlement in accordance with the provisions of the Arbitration Act, 1940 (Act No. X of 1940) and Rules made thereunder and any statutory modifications thereto.

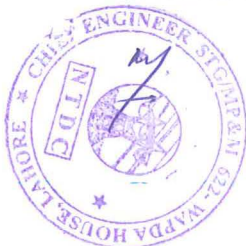
Services under the Contract shall, if reasonably possible, continue during the arbitration proceedings and no payment due to or by the Client shall be withheld on account of such proceedings.

9. INTEGRITY PACT

9.1 If the Consultant or any of his Subconsultants, agents or servants is found to have violated or involved in violation of the Integrity Pact signed by the Consultant as Appendix-G to this Form of Contract, then the Client shall be entitled to:

- (a) recover from the Consultant an amount equivalent to ten times the sum of any commission, gratification, bribe, finder's fee or kickback given by the Consultant or any of his Subconsultant, agents or servants;
- (b) terminate the Contract; and
- (c) recover from the Consultant any loss or damage to the Client as a result of such termination or of any other corrupt business practices of the Consultant or any of his Subconsultant, agents or servants.

On termination of the Contract under Sub-Para (b) of this Sub-Clause, the Consultant shall proceed in accordance with Sub-Clause 2.9.3. Payment upon such termination shall be made under Sub-Clause 2.9.4 (a) after having deducted the amounts due to the Client under Sub-Para (a) and (c) of this Sub-Clause.



III. SPECIAL CONDITIONS OF CONTRACT

Clause No. of GC Amendments of, and Supplements to, Clauses in the General Conditions of Contract

1.1 Definitions

- (p) "Project means 220kV D I Khan - Zhob Transmission Line (Approx. 220km) included in ADB Loan No. 3577-PAK Tranche-II"

Following is added at the end of Sub-Clause:

- (q) "Construction Contract" means the Contract governing the relationship between the Client (the Employer) and the Contractor.
- (r) "Site" means the places provided by the Client where the Works/Facilities are to be executed and any other places as may be specified designated in the Construction Contract as forming part of the Site.

1.6 Authorized Representatives

The Authorized Representatives are the following:

For the Client:

Chief Engineer (MP&M)

8th Floor, Shaheen Complex, Egerton Road, Lahore, Pakistan

Postal Code: 54000

Tel: (0092) 42-3357402401

Fax: (0092) 42-99202173

E-mail: cempm@ntdc.com.pk

or any other official nominated by the Client.

For the Consultants:

Project Manager

220kV D I Khan – Zhob Transmission Line included in ADB Loan No. 3577-PAK Tranche-II

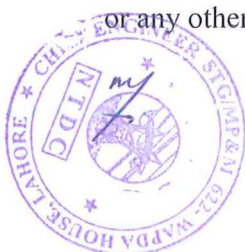
Power and Mechanical Division, NESPAK House,

1-C, Block-N, Model Town Extension, Lahore

Telephone : 042-99090000

Facsimile : 042-99231936

or any other official nominated by the Consultants.



1.7 Taxes

Following is added at the end of Sub-Clause:

“The Consultants are responsible to pay the Income Tax against their invoices. The Client shall not deduct income/withholding tax, or any other taxes levied upon the Consultants at the time of payment against the Consultancy Services remuneration, in case the Consultants produce exemption certificate for waiver of such deductions at source u/s 153(1)b of Income Tax Ordinance 2001.

Any taxes and duties levied after the date of submission of Consultants' Proposal (June 27, 2019) shall be paid to the Consultants by the Client as per actual. Furthermore, the Sales Tax on Services, levied by Provincial Governments of Pakistan and amended from time to time, shall be paid by the Client separately in addition to the remuneration of Services rendered by the Consultants payable as per Sub-Clause 6.2.”

1.8 Leader of Joint Venture

The leader of the Joint Venture is National Engineering Services Pakistan (Pvt.) Limited (NESPAK).

2.1 Effectiveness of Contract

The date on which this Contract shall come into effect is the date when the Contract is signed by both the Parties.

2.2 Termination of Contract for Failure to Become Effective

The time period shall be one hundred twenty (120) days or such other period as the Parties may agree in writing.

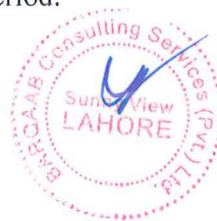
2.3 Commencement of Services

The Consultants shall commence their Services within Seven (07) days of Effectiveness of Contract.

2.4 Expiration of Contract

The period of completion of Services shall be Thirty Six (36) months including Twelve (12) months Defect Liability Period from the Commencement Date of the Services or such other period as the Parties may agree in writing. The Services are expected to be completed up to December, 2022.

"Completion of Services" means completion of last activity to be performed by the consultant i.e. supervision during defect liability period.



3.5 Insurance to be Taken out by the Consultants

The consultants shall take out and maintain various insurances, if required by the Client under the Contract, at the cost and expense borne by the Client.

3.6 Consultants' Actions Requiring Client's Prior Approval

(c) The Consultants shall also clear with the Client, before commitments on any action they propose to take under the following:

- i) Issuing Variations Orders in respect of:
 - additional items of Works as determined by the Engineer to be necessary for the execution of Works.
 - any new item of the Works not envisaged in the Contract Documents and which is determined by the Engineer to be necessary for the execution of Works.
 - any item of Works covered under Provisional Sums
- ii) Claim from the Contractor for extra payment with full supporting details and Consultants recommendations, if any, for settlement.
- iii) Details of any nominated sub-contracts.
- iv) Any action under terms of Performance Guarantee or Insurance Policy.
- v) Any action by the Consultants affecting the costs under the following clauses of Conditions of Contract of the Construction Contract.
 - Adverse Physical Conditions and Artificial Obstructions
 - Suspension of Works
 - Bonus and Liquidated Damages
 - Certificate of Completion of Works
 - Defects Liability Certificate
 - Forfeiture
 - Special Risks
 - Frustration
- vi) Final Measurement Statement
- vii) Release of Retention Money
- viii) Any change in the ratios of various currencies of payment.



3.8 Documents Prepared by the Consultants to be the Property of the Client

The Consultants shall not use these documents for purposes unrelated to this Contract without the prior written approval of the Client.

4.6 Resident Engineer

The person, designated as Project Manager in Appendix C, will be stationed at Lahore or any other appropriate location and will be responsible for overall management, close liaison with the Client, Consultants' field offices, the Contractor(s) and smooth execution of the construction Works/Facilities at site.

Further a Construction Supervision Expert mentioned in Appendix C, shall serve in the capacity of Resident Engineer and will remain at site at all times and will be responsible for construction supervision, close liaison with Client's local office and the Contractor(s) and smooth execution of the construction works at site(s).

5.1.1 Assistance

- (a) The Client shall make available as and when required by the Consultants after the effectiveness of the Contract, the following documents:
- Contract documents for the Construction Contract
 - Vendor's drawings & technical data and other information on the equipment and devices to be used on transmission line.
 - NTDC's approved drawings/procedures/proforma for construction of civil works, installation, testing & commissioning of transmission line.
 - All necessary data, information, drawings required to carry out construction supervision of transmission line.

The list if warranted shall be supplemented subsequently.

- (b) The Client will assist for any technical and administrative support the consultants may need for the performance of services.

5.1.2 Coordination

The departments and agencies include Government of Pakistan, Government of KPK, Government of Balochistan, NTDC/WAPDA formations including EHV Construction Projects, Design, planning and any other government departments etc. or parties which are directly involved during the execution of the services.

5.1.3 Approvals

The Client shall accord approval of the documents immediately but not later than fourteen (14) days from the date of their submission by the Consultants.



6.2 Remuneration and Reimbursable Direct Costs (Non-Salary Costs)

6.2(a) Payments for remuneration made in accordance with Sub-Clause 6.2(a) shall be adjusted as follows:

Remuneration paid in local currency pursuant to the billing rates Appendix-E for each person shall be adjusted in July of every year (and, for the first time, with effect from the remuneration earned in July following submission of financial proposal) by considering the following upon substantiation:

- Annual increment
- Increase due to promotion
- Salary revision, as approved by the Management of respective Partner of the Consultants, if applicable, due to statutory notification by the Government of Pakistan, pursuant to GC Sub-Clause 5.3 or otherwise

6.2(b) The billing rates set forth in Appendix-E effective from July 2017 have been used for computing the estimated costs of Services. For Consultants' staff nominated by name, monthly billing rates are based on the salary/remunerations actually being paid to the respective person whereas for other staff to be deployed by the Consultants, average billing rates have been used. However actual billing rates shall be worked out for each Consultants' staff during Project execution. Price adjustment shall be worked out separately during Project Execution if any, pursuant to SC Sub Clause-6.2(a) for every personnel for the purpose of billing to the Client which shall be paid by the Client to the Consultants in addition to the remunerations of Services worked out based on billing rates effective from July 2017.

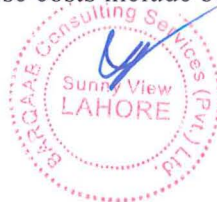
It is understood that the remuneration rates shall cover salary and allowances as the Consultants shall have agreed to pay to the Personnel as well as factors for social charges and overhead based on the reports of Commercial Auditor of Consultants' recorded expenditures for latest three financial years and fee of the Consultants.

The remuneration rates have been agreed upon based on the representations made by the Consultants during finalization of this Contract with respect to the Consultants' costs and charges as referred above as such representations are evidenced by the breakdown of rates and prices given in Appendix-E hereof.

Remuneration for periods of less than one month shall be calculated on hourly basis for the time spent by the Head Office staff or Project Office staff and directly attributable to the Services (one hour being equivalent to 1/170 of a month) and on calendar day basis for time spent by the Site Office staff (one day being equivalent to 1/30th of a month).

6.2(c) Reimbursable Direct Costs (Non Salary Costs)

Direct Non-salary Costs are such incurred non-salary costs which are directly allocable to specific engagements and projects. These costs include but are not limited to the following:



- (1) Expenditures related to support staff, and work charged staff at Project/Head Office and Site/Field Offices.
- (2) Project/Head/Site/Field Offices expenditures related to:
 - (a) rental of accommodation (payable on the basis of lump sum monthly rate) and cost of alteration including partitions, fixtures, fittings, etc.
 - (b) furnishing and equipment comprising the following:
 - (i) tables, office chairs, revolving chairs, conference table with chairs, visitors' sofa, desks, filing cabinets, wooden beds with mattresses and steel almirah etc.
 - (ii) desktop & laptop computers, scanners, printers, cameras, binoculars, GPRS, miscellaneous hardware, computer's UPS, calculators;
 - (iv) photocopy machines, air-conditioners, electric heaters, gas heaters, pedestal and ceiling fans, refrigerators, cooking range, electric water coolers, generators, UPS, voltage regulators & desert coolers, geysers etc.
 - (v) published standards, computer software;
 - (vi) carpets, curtains, fixtures, crockery & utensils;
 - (vii) landline & mobile telephone sets, fax machines, internet connection;
 - (viii) miscellaneous items;
 - (c) operation and maintenance (utility bills, i.e. gas, electricity, water, landline & mobile telephone, internet connection), photocopy paper, toner etc., office stationery, binding materials, computer stationery, DVDs, CDs & USBs, postage and courier services charges, maintenance and replacements of air conditioners, maintenance of desktop and laptop computers, scanners and printers, maintenance of equipment and furniture, printing and binding of documents from the market, packing and storage of documents and other minor expenditures etc.
- (3) Expenditures related to transport and associated costs for rental of vehicle with driver, operation/fuel expenditures of vehicles, salary of drivers and other minor expenditures.
- (4) Expenditures related to salary of Naib Qasids, Security guards, Cooks and Sweepers.



- (5) Expenditures related to traveling including daily allowance and accommodation etc., for domestic trips in accordance with Consultants' TA Rules as amended from time to time, overtime for professional, paraprofessional & support staff etc., Project/Site/Field allowance, mobilization/demobilization.
- (6) Expenditures related to staff costs in connection with special studies, investigations, materials testing etc. However, payments to the institutions/laboratories will be made directly by the Client.

Unless otherwise agreed the items purchased from Client's account under item number 2(b) hereof shall be the Client's property and will be returned back on completion of Services.

The details of reimbursable direct cost expenditures in local currency shall be as stated in Appendix-E3.

6.3 Currency of Payment

Entire text of GC Sub-Clause 6.3 is replaced with the following

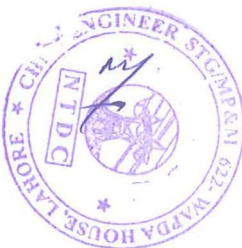
- a) All payments as detailed in Appendix-E, shall be made in Pak-Rupees.
- b) All remuneration and reimbursable direct cost/expenditures shall be paid in Pak-Rupees.

6.4 Mode of Billing and Payment

All payments in respect of the Services shall be made by the Client through bank draft/crossed cheque 'Payees A/C only', in favour of each Member of the joint venture separately, according to its respective share, after deduction of taxes at source from the payment of each Member at the rate applicable to the companies. The cheques shall be deposited by each Member in Current Account opened in its name.

6.5 Delayed Payments

This Clause is deleted in its entirety.



IV APPENDICES

Appendix A

Description of the Services

1. SCOPE OF WORK

The Scope of work of the Projects is Construction Supervision and its allied activities for following lines:

Sr. #	Description	Line Length (Approx.)	Completion Period
1.	220kV D. I. Khan - Zhob transmission line	220km	24 months

2. OBJECTIVE

With the aim of timely completion of the project, the Contractor is likely to employ multiple gangs for the construction of the transmission lines. Accordingly, the Project authority shall require adequate manpower for site supervision. The selected consulting firm shall provide trained manpower in adequate number to carry out supervision of the construction; installation and commissioning of the transmission lines in compliance with quality requirements.

The main purpose of supervision consultant is to provide support to the employer to ensure successful implementation of the Project as per technical specification, drawings & design, relevant standards and provisions of the bidding documents with following clear objectives:-

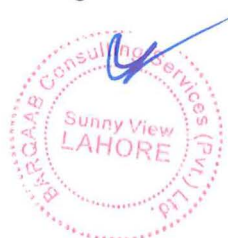
- To Co-ordinate with Project Authority of the employer to ensure proper and timely execution of the project as per Quality Assurance plan/relevant standards/provisions of contract / Technical Specifications/approved drawings.
- Supervising the quality of execution of works at sites.
- To ensure adherence to safety standards in compliance with rules & regulations of various statutory bodies.
- Certification of quality of civil works and installation services carried out by transmission line Contractor at sites.
- Random Site checking of material received after inspection and shipment to ensure the material received are in good condition.
- Other associated activities related with quality assurance of the works and material.

3. SCOPE OF CONSULTANCY SERVICES

The scope of consultancy services shall encompass the following activities:

3.1 Construction Supervision and Allied Activities

The monitoring and supervision of works at sites shall be carried out by the Consultant. They will supervise the quality of works executed by the Contractor at sites to ensure that the works are being executed as per technical



specifications (given in bidding documents) and as per the standards laid down in the contract/bidding document. The supervision consultant shall be responsible for the supervision of construction and installation services. The Consultant shall represent interest of NTDC vis a vis the contract in all manner related to proper execution of the works at sites.

The main activities to be checked by the consultant to ensure that the works are executed as per Technical Specifications and Quality Assurance plan of the contract shall be as under:

3.1.1 Supervision of the civil construction work:

Supervision of civil construction works shall be as per the provision of the bidding documents, technical specifications, Quality Assurance Plan for the contract approved by NTDC, drawing and designs prepared by Contractor and approved by the Engineer and NTDC's practices as advised by the Project Authority. The following shall be in any case specifically checked and reported:

- i. Check the line and position given by the Contractor for the construction of tower foundation as per approved drawings.
- ii. Analyze the site conditions/requirements and suggest appropriate tower foundation and its types and other civil structures according to site requirements.
- iii. Check the reinforcement as per the approved drawing.
- iv. Supervise and check the stub setting as per the approved drawings.
- v. Supervise the concreting works for the foundation as per the technical Specifications.
- vi. Supervise the construction works for different other civil works as per approved design.
- vii. Supervise the back filling of towers with proper compaction of earth.
- viii. All other related works, not mentioned herein above, but reasonably required for satisfactory completion of work.

3.1.2 Supervision of erection of tower structures and installation of hardware

The scope of Supervision of erection of the tower structures shall consist of, but not be limited to, the following:

- i. Check the supplied steel structure for compliance to the approved drawing and for any damage during transportation.
- ii. Supervise the erection of steel structure of the tower as per technical specifications and approved drawings.
- iii. Check the connection of joints of the structures as per approved drawing.
- iv. Check the supplied hardware and related fittings and its installation for compliance with technical specifications and approved drawings.
- v. All other related works, not mentioned herein above, but reasonably required for satisfactory completion of work.



3.1.3 Supervision of stringing works

The scope of Supervision of stringing works shall consist of, but not be limited to, the following:

- i. Assist the contractor to check the supplied hardware and related fittings are in compliance with the technical specification and approved drawings.
- ii. Check the supplied conductor/ OPGW for any damages before stringing.
- iii. Supervise the placement of devices, tools and tackles for stringing.
- iv. Supervise the stringing works of the conductor / OPGW and ensure that stringing is carried out through tension controlled method.
- v. All other related works, not mentioned herein above, but reasonably required for satisfactory completion of work.

3.1.4 Testing & commissioning.

The scope of testing & commissioning shall consist of, but not be limited to, the following:

- i. Review and approve the contractor's procedure of commissioning and acceptance tests (to be submitted by the contractor).
- ii. Supervise testing and commissioning of the plant supplied by the contractor(s) for the project and ensure that quality and credibility of the outputs is as stipulated in the bidding document.
- iii. All other related works, not mentioned herein above, but reasonably required for satisfactory completion of work.

3.1.5 Other Allied Activities

The allied activities will include, but not be limited to, the following:

- i. Assess the adequacy of all inputs such as materials, plant, equipment and labor provided by the contractor and his method of work in relation to the required rate of progress, and when required to take appropriate action in order to expedite progress. Keep and regularly update a list of the contractor's equipment (and its condition) to ensure compliance with date of completion provided in his contract.
- ii. Extend timely assistance and directions to the contractors in all matters related to interpretation of the contract documents, plans, quality control testing, and other matters relating to contract compliance and progress.
- iii. Keep close coordination and liaison between different organizations/agencies inside and outside of NTDC during execution of Project. Check/review and monitor schedule for construction activities prepared by the Contractors to ensure the timely completion of Project.
- iv. Propose to NTDC for approval any changes in the plans due to difficulties or barriers, which were not expected at the start of the project or changes which are deemed necessary for the completion of the work, indicating any effect the changes may have on the contract amount and any additional time required to complete the project. Submit all necessary change orders including revisions and/or alteration of plans and specification and other



details. Also prepare variations orders for approval by NTDC and issuance thereof.

- v. Check construction drawings for any alteration in the same according to site requirements. Ensure the "as-built drawings" are prepared for all works as the works are finalized.
- vi. Upon substantial completion of works, inspect the works and inform the contractor in writing regarding the items needing certification for full completion. Upon full completion, the consultant shall assist NTDC in doing the inspection of the project in connection with the issuance of the Completion Certificate stating the date or dates from which the Maintenance Period shall start. Consultant will issue taking over certificates after prior approval by NTDC and completion of outstanding works.
- vii. Perform any and all other items of work not specifically mentioned above, but which are necessary and essential to successfully supervise and control the construction activities in accordance with the plans, specifications and terms of contract.

3.2 Project Management, Quality Control and Safety.

- a. Check and make recommendations on quality assurance, quality control plan and submitted by contractors.
- b. For determining that the construction works and the material conform to the specification and standards, the consultant shall require the contractor to carry out or cause to be carried out all necessary tests as provided in technical specifications and in accordance with Good Industry practice for quality assurance. The consultant shall issue necessary directions to the contractor for ensuring that the tests are conducted in a fair and efficient manner and shall monitor and review the results thereof.
- c. The consultant shall prepare a schedule/program to carry out/witness inspections/tests and notify the same to the Engineer, who may, in its discretion depute its representatives to be present during the inspection/tests.
- d. In the event that the Contractor carries out any remedial works for removal or rectification of any defects or deficiencies, the consultant shall require the contractor to carry out, or cause to be carried out, tests to determine that such remedial works have brought the Construction Works into conformity with the Specifications and Standards.
- e. In the event that the contractor fails to achieve any of the Project milestones/timelines, the consultant shall undertake a review of the progress of construction and identify potential delays, if any. If the consultant shall determine that completion of the Transmission System is not feasible within the time specified in the contract agreement, it shall require the contractor to indicate within 15 (fifteen) days the steps proposed to be taken to expedite progress, and the period within which the Project Completion Date shall be achieved. Upon receipt of a report from the contractor, the consultant shall review the same and send its comments to the employer, Engineer and the Contractor forthwith.
- f. If at any time during the Construction Period, the Consultant determines that the Contractor has not made adequate arrangements for the safety of workers or any other persons in the zone of construction, or that any work is being carried out in a manner that threatens the safety of the workers or



any other persons in the zone of construction, it shall make a recommendation to the Employer forthwith, identifying the whole or part of the Construction Works that should be suspended for ensuring safety in respect thereof.

- g. In the event that the Contractor carries out any remedial measures to secure the safety of suspended works and other persons in the zone of construction, it may, by notice in writing, require the Consultant to inspect such works, and within 3 (three) days of receiving such notice, the Consultant shall inspect the suspended works and make a report to the Employer forthwith, recommending whether or not such suspension may be revoked by the Employer.
- h. If suspension of Construction Works is for reasons not attributable to the Contractor, the Consultant shall propose the extension of dates set forth in the Project Completion Schedule, to which the Contractor is reasonably entitled along with any financial implications that it may have.
- i. Monitor schedules for material procurement offered by the contractors/suppliers to ensure timely completion of the project.
- j. Monitor the progress of delivery for installation and check/review the status of installation as per detailed design and provide feedback to the project Authority and the Engineer on weekly/monthly basis.
- k. Maintain record of the material utilized & Reconciliation of material for the project.

3.3 Verification of contractor's Invoices

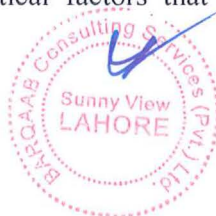
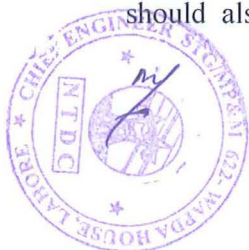
- a. Measure and determine quantities for certification or progress payments due to the contractor in accordance with the provisions of the respective contract document.
- b. Review and check contractor's request for payments and issue certificate to NTDC for payment to the contractor(s).
- c. Scrutinize contractor's claims and submit recommendations to NTDC.
- d. Submit reviewed monthly invoices to NTDC for settlements of payments due to the contractors.
- e. Assist in liaison and final settlements of the claims between NTDC and contractors except in the cases of litigation and arbitration. Also provide recommendations on any outstanding claims of the contractors.

3.4 Supervision in Defects Liabilities Period and Completion of the Project

Supervise completion of the outstanding works and removal of the defects by the contractor(s) during defects liability period (a period of 12 months after issuance of the Taking Over, certificate) and issue Defect Liability Certificate(s).

3.5 Preparation of Reports and Documents

- a. The Consultant shall Prepare detailed implementation plan in coordination with the Contractor with monthly reviews, comments and updates. Implementation plan report should indicate the activity-wise phasing of construction. Steps that could be taken to reduce the period of construction should also be indicated. Identify the critical factors that could affect



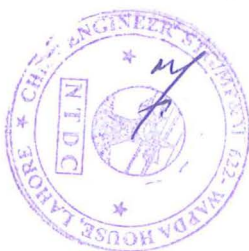
construction/implementation of the project and develop a detailed management plan and recouping strategies for such factors.

- b. Consultant shall submit a Monthly Progress Report that summarizes all aspects of the completed month and cumulative work progress. The objectives of the Monthly Progress Report are to:
- i. Provide a reliable and readily accessible summary record of the project activities and progress during the just completed month.
 - ii. Provide a detailed description of all works actually completed to date and revision to the project schedule, required, which shall reflect changes in the critical path since the date of the last revision.
 - iii. Identify issues and problems requiring action by the NTDC, Consultant or Contractor including issues of conflicting priorities.
 - iv. Identify the problems encountered or anticipated together with steps taken or recommended for their correction
 - v. Provide a forecast of the work to be accomplished in the next month.
 - vi. List the Contractor's equipment and work force; evaluate the adequacy of working methodology & resources employed by the contractor and make recommendations thereto.
 - vii. Provide information to help substantiate Consultant's pay request.
- c. The consultant will prepare quarterly progress reports on physical and financial progress of the project and distribute these to NTDC. Summarizing the construction activities indicating among other things, disbursement, accomplishment, activities, contract changes, claims or disputes or any other substantive matters having an effect on the amount, cost and progress of the work.
- d. Upon completion of the project the Consultant will prepare the Project Completion Report.

All reports/documents should be in English language and content/format of the same should be finalized with concurrence of NTDC. For each report submitted an electronic copy will also be provided.

4. COMPLETION PERIOD

All the works are required to be completed within Thirty (36) months including Defect Liability Period of 12 months after the commencement of works by the Contractors.



Appendix B

Reporting Requirements

- B-1** The Consultant will prepare the monthly progress reports on physical progress of the project and distribute them to NTDC. All reports should be in English and the format and content of each report should be acceptable to the NTDC. For each report submitted, an electronic copy will be provided.



Appendix C

Key Personnel and Sub consultants

C-1 Consultants' Key Personnel

List of key personnel is as under. The estimated man-months and period of engagement of the key and other personnel are provided in Annexure-I to Appendix C - Manning Schedule for Consultant Personnel:

Sr. #	Name	Employer	Position
1.	Tahir Adnan Qureshi	NESPAK	Project Manager/Team Leader
2.	Abdul Mannan Malik	NESPAK	Contracts Expert
3.	Abdul Samad Khoso	NESPAK	Construction Supervision Expert (Elect)
4.	Fawad Hussain	NESPAK	Junior Construction Supervision Engineer (Elect)-I
5.	Qasim Bin Nasir	BARQAAB	Junior Construction Supervision Engineer (Elect)-II
6.	Riaz Hussain Bhatti	BARQAAB	Construction Supervision Expert (Civil)
7.	Khalid Abbas	BARQAAB	Junior Construction Supervision Engineer (Civil)-I
8.	Izhar Ullah Khan	NESPAK	Junior Construction Supervision Engineer (Civil)-II
9.	M. Aslam	NESPAK	Testing & Commissioning Engineer

Experts/Advisors will also be utilized for providing services as and when required.

In case proposed key personnel are engaged on some other assignment/project, a key personnel having similar experience will be deployed on the Project.

C-2 Subconsultants

No Sub consultants are envisaged to carry out the Services under the Contract.



Consultancy Services for
Construction Supervision and Allied Activities Including Verification of Contractors' Invoices and Testing & Commissioning of
220kV D.I.Khan-Zhob Transmission Line Included In ADB Loan No. 3577-PAK Tranche-II Under NTDC's Own Resources

Annexure to Appendix-C

Manning Schedule for Consultant Personnel

				Months	1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23	24	Twelve (12) Months DLP
Sr. No.	Name	Position																											
Key Personnel																													
1	Tahir Adnan Qureshi	Project Manager/Team Leader	Home																										
			Field																										
2	Abdul Mannan Malik	Contracts Expert	Home																										
			Field																										
3	Abdul Samad Khoso	Construction Supervision Expert (Elect)	Home																										
			Field																										
4	Fawad Hussain	Junior Construction Supervision Engineer (Elect)-I	Home																										
			Field																										
5	Qasim Bin Nasir	Junior Construction Supervision Engineer (Elect)-II	Home																										
			Field																										
6	Riaz Hussain Bhatti	Construction Supervision Expert (Civil)	Home																										
			Field																										
7	Khalid Abbas	Junior Construction Supervision Engineer (Civil)-I	Home																										
			Field																										
8	Izhar Ullah Khan	Junior Construction Supervision Engineer (Civil)-II	Home																										
			Field																										
9	M Aslam	Testing & Commissioning Engineer	Home																										
			Field																										
Others																													
10	TBN	Transmission Line Design & Engineering Expert	Home																										
			Field																										
11	TBN	Quality Control and Assurance Expert	Home																										
			Field																										
12	TBN	Health & Safety Expert	Home																										
			Field																										
13	TBN	Project Monitoring & Budgeting Engineer	Home																										
			Field																										
Support Staff																													
14	TBN	Senior Engineer(s)	Home																										
			Field																										
15	TBN	Junior Engineer(s) / Expert(s)	Home																										
			Field																										
16	TBN	Accountant / Office Assistant	Home																										
			Field																										
17	TBN	Admin Manager	Home																										
			Field																										

Legends:

 Full time input
 Intermittant input



Appendix D

Breakdown of Contract Price in Foreign Currency

(NOT USED)

21/



Appendix E

Breakdown of Contract Price in Local Currency

The breakdown of Contract Price in Local Currency is given in the following Appendices:

Appendix E1 – Estimated Costs of Engineering Consultancy Services - Summary

Appendix E2 – Estimated Salary Costs/Remunerations of Consultants

Appendix E3 – Estimated Reimbursable Direct Costs (Non-Salary Costs) of Consultants

Appendix E4 – Monthly Billing Rates of Consultants' Staff in Pakistan

Notes:

- (1) Remuneration, i.e. staff costs based on monthly billing rates of the staff, reimbursable direct costs (non-salary costs) and contingencies provided in Estimated Costs of Engineering Consultancy Services are exclusive of adjustment of billing rates.
- (2) Each item of salary costs and direct non-salary costs is payable on the basis of monthly billing rate and reimbursement of actual expenditures respectively.
- (3) Payments in respect of any cost (i.e. total remuneration, and total reimbursable non-salary direct cost) which could exceed the estimates set forth in this Appendix may be chargeable to the contingency amounts provided for in the estimate.
- (4) Distribution of staff-months and direct cost amongst different grades and heads of salary costs & direct costs is estimated. To ensure efficient performance of the Services, the Consultants may make adjustments among man-months of different grades of the Consultants' staff indicated in the salary cost estimate and among different heads of the direct costs, in accordance with the requirements of the Project remaining within the total cost of the Services.
- (5) The Consultants may make adjustment among salary and direct cost in accordance with the actual Project requirement without exceeding the total cost of Engineering Consultancy Services.



**CONSULTANCY SERVICES FOR 220kV D.I.KHAN-ZHOB TRANSMISSION LINE INCLUDED IN ADB LOAN NO. 3577-PAK
TRANCHE-II UNDER NTDC'S OWN RESOURCES**

Firm: NESPAK + BARQAAB (JV)

SUMMARY OF COST OF CONSULTANTS

S. No.	Description	Amount (PKR)
1	Salary Cost/Remuneration	99,430,201
2	Direct (Non-salary) Costs	49,497,000
3	Sub-Total (1+2)	148,927,201
4	Sales Tax @ 15% *(KPK/Balochistan)	22,339,080
5	Grand Total (5+6)	171,266,281

*Note: Sales Tax is 15% for KPK & Balochistan both.

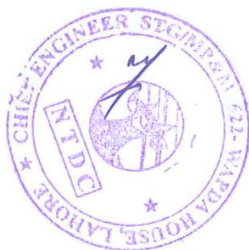


CONSULTANCY SERVICES FOR 220kV D.I.KHAN-ZHOB TRANSMISSION LINE INCLUDED IN ADB LOAN NO. 3577-PAK TRANCHE-II UNDER NTDC'S OWN RESOURCES

ESTIMATED SALARY COSTS/REMUNERATION OF CONSULTANTS

Firm: NESPAK

Sr. No.	Name	Employer	Position	Grade	Man-Months	Monthly Billing Rate (PKR)	Total Amount (PKR)
A	Key Personnel						
1	Tahir Adnan Qureshi	NESPAK	Project Manager/Team Leader	NF-IIa	26	342,599	8,907,584
2	Abdul Mannan Malik	NESPAK	Contracts Expert	NF-IIa	3	488,455	1,465,366
3	Abdul Samad Khoso	NESPAK	Construction Supervision Expert (Elect.)	11	18	798,500	14,373,000
4	Fawad Hussain	NESPAK	Junior Construction Supervision Engineer (Elect.)-I	9	18	377,600	6,796,800
5	Qasim Bin Nasir	BARQAAB	Junior Construction Supervision Engineer (Elect.)-II	-	18	197,100	3,547,800
6	Riaz Hussain Bhatti	BARQAAB	Construction Supervision Expert (Civil)	-	20	424,000	8,480,000
7	Khalid Abbas	BARQAAB	Junior Construction Supervision Engineer (Civil)-I	-	20	197,100	3,942,000
8	Izhar Ullah Khan	NESPAK	Junior Construction Supervision Engineer (Civil)-I	NF-9	24	105,500	2,532,000
9	M Aslam	NESPAK	Testing and Commissioning Engineer	12	0.5	880,800	440,400
	Others						
10	TBN	NESPAK	Transmission Line Design & Engineering Expert	GM	0.5	1,120,100	560,050
11	TBN	NESPAK	Quality Control and Assurance Expert	G-10	0.5	531,600	265,800
12	TBN	NESPAK	Health & Safety Expert	G-10	0.5	531,600	265,800
13	TBN	NESPAK	Project Monitoring & Budgeting Engineer	G-9	24	412,100	9,890,400
	Sub-Total (A)					173	-
							61,467,001
B	Support Staff						
1	TBN	NESPAK	Junior Engineer(s)	G-8 (a)	15	348,300	5,224,500
2	TBN	NESPAK	Junior Expert(s)	NF-9	98	136,600	13,386,800
3	TBN	BARQAAB	Senior Engineer(s)	-	20	322,100	6,442,000
4	TBN	BARQAAB	Junior Engineer(s)	-	80	144,100	11,528,000
5	TBN	NESPAK	Accountant / Office Assistant	G-6	4	174,100	696,400
6	TBN	NESPAK	Admin Manager	G-7	3	228,500	685,500
	Sub-Total (B)					220	-
							37,963,200
	Total (A)+(B)					393	-
							99,430,201



**CONSULTANCY SERVICES FOR 220kV D.I.KHAN-ZHOB TRANSMISSION LINE INCLUDED IN ADB LOAN NO.
3577-PAK TRANCHE-II UNDER NTDC'S OWN RESOURCES**

ESTIMATED DIRECT /NON-SALARY COSTS OF CONSULTANTS

Firm: NESPAK

Sr. No.	Description	Estimated Cost (PKR)
I.	Project /Field Offices	
1.	Furnishing of office cum residence accommodation	1,442,000
2.	Rent of office cum residence	3,500,000
3.	Air conditioner	720,000
4.	Electricity, Water and gas Charges	1,750,000
5.	Running and Maintenance of Office and Office Equipment	770,000
6.	Office Supplies and Stationary	225,000
7.	Computer/Laptops along with Printers, Photocopying Machines and Fax Machines	615,000
8.	Fax, Postage, Courier & Telephone Charges	595,000
9.	Transportation (Vehicles including their Running and Maintenance)	32,160,000
10.	Non-Technical Staff	3,780,000
11.	T.A/D.A	3,690,000
12.	Repair & Maintenance of Computer Hardware & Software and Software for Transmission Line	100,000
13.	Miscellaneous	150,000
Total		49,497,000



BREAKDOWN OF RATES FOR CONSULTANCY CONTRACT

Firm: NESPAK - BARQAAB JV

Sr. No.	Name	Employer	Position	Grade	Basic Salary per Cal. Month	Social Charges		Overheads		Sub - Total	Fee	*Rate per Month for Project Office	Field Allowance	*Rate per Month for Field Work	
						Amount	(% of 1)	NESPAK	BARQAAB				NESPAK		
								(88.76% of 1+2)	(69.85% of 1+2)						(20% of 1)
								PKR	PKR						
					(1)	(2)	(3)	(3)	(4)	(5)	(6)	(7)	(8)		
A Key Personnel															
1	Tahir Adnan Qureshi	NESPAK	Project Manager/Team Leader	NF-IIa	165,000	N/A		146,454	-	311,454	31,145	342,599	N/A		
2	Abdul Mannan Malik	NESPAK	Contracts Expert	NF-IIa	235,246			208,804	-	444,050	44,405	488,455			
3	Abdul Samad Khoso	NESPAK	Construction Supervision Expert (Elect.)	11	309,416	45,342	15%	314,883	-	669,641	66,964	736,605	61,883	798,500	
4	Fawad Hussain	NESPAK	Junior Construction Supervision Engineer (Elect.)-I	9	120,891	49,327	41%	151,085	-	321,303	32,130	353,434	24,178	377,600	
5	Qasim Bin Nasir	BARQAAB	Junior Construction Supervision Engineer (Elect.)-II	-	95,293	N/A		-	66,562	161,855	16,186	178,041	19,059	197,100	
6	Riaz Hussain Bhatti	BARQAAB	Construction Supervision Expert (Civil)	-	205,008	N/A		-	143,198	348,206	34,821	383,027	41,002	424,000	
7	Khalid Abbas	BARQAAB	Junior Construction Supervision Engineer (Civil)-I	-	95,293	N/A		-	66,562	161,855	16,186	178,041	19,059	197,100	
8	Izhar Ullah Khan	NESPAK	Junior Construction Supervision Engineer (Civil)-I	NF-9	46,350	N/A		41,140	-	87,490	8,749	96,239	9,270	105,500	
9	M Aslam	NESPAK	Testing and Commissioning Engineer	12	353,734	36,379	10%	346,264	-	736,377	73,638	810,015	70,747	880,800	
Others															
10	TBN	NESPAK	Transmission Line Design & Engineering Expert	GM	409,817	129,615	32%	478,800	-	1,018,232	101,823	1,120,100	N/A		
11	TBN	NESPAK	Quality Control and Assurance Expert	G-10	187,093	68,947	37%	227,261	-	483,301	48,330	531,600			
12	TBN	NESPAK	Health & Safety Expert	G-10	187,093	68,947	37%	227,261	-	483,301	48,330	531,600			
13	TBN	NESPAK	Project Monitoring & Budgeting Engineer	G-9	143,614	54,877	38%	176,181	-	374,672	37,467	412,100			
B Support Staff															
1	TBN	NESPAK	Junior Engineer(s)	G-8 (a)	111,980	44,957	40%	139,297	-	296,234	29,623	325,900	22,396	348,300	
2	TBN	NESPAK	Junior Expert(s)	NF-9	60,000	-	0%	53,256	-	113,256	11,326	124,600	12,000	136,600	
1	TBN	BARQAAB	Senior Engineer(s)	-	155,749	N/A		-	108,791	264,540	26,454	291,000	31,150	322,100	
2	TBN	BARQAAB	Junior Engineer(s)	-	69,674	N/A		-	48,667	118,341	11,834	130,200	13,935	144,100	
3	TBN	NESPAK	Accountant / Office Assistant	G-6	58,443	25,398	43%	74,417	-	158,258	15,826	174,100	N/A		
4	TBN	NESPAK	Admin Manager	G-7	78,817	31,214	40%	97,664	-	207,695	20,769	228,500			



CONSULTANCY SERVICES FOR 220kV D.I.KHAN-ZHOB TRANSMISSION LINE INCLUDED IN ADB LOAN NO. 3577-PAK TRANCHE-II UNDER NTDC'S OWN RESOURCES

BREAKDOWN OF SOCIAL CHARGES

Firm: NESPAK

Sr. No.	Detailed Description	Refer Income Statement	Tahir Adnan Qureshi		Abdul Mannan Malik		Abdul Samad Khoso		Fawad Hussain		Qasim Bin Nasir		Riaz Hussain Bhatti		Khalid Abbas		Izhar Ullah Khan		M Aslam	
			Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary
1	Medical	Financial Statements Attached in Technical Proposal		0.00%		0.00%	3,000	0.97%	9,187	7.60%	7,463	7.83%	7,463	3.64%		0.00%	7,463	7.83%	9,187	2.60%
2	Welfare Fund Contribution			0.00%		0.00%		0.00%	938	0.78%	1,056	1.11%	2,104	1.03%		0.00%	1,176	1.23%	2,642	0.75%
3	C.P. Fund			0.00%		0.00%		0.00%	5,810	4.81%	6,552	6.88%	13,042	6.36%		0.00%	7,293	7.65%	16,378	4.63%
4	Gratuity (Pay/12)			0.00%		0.00%	11,306	3.65%	4,842	4.01%	5,460	5.73%	10,868	5.30%		0.00%	6,078	6.38%	13,648	3.86%
5	Old Age Benefits			0.00%		0.00%	780	0.25%	780	0.65%	780	0.82%	780	0.38%		0.00%	780	0.82%	780	0.22%
6	Group Insurance			0.00%		0.00%	999	0.32%	644	0.53%	644	0.68%	999	0.49%		0.00%	644	0.68%	999	0.28%
7	Leave Fare Assistance (Pay/12)			0.00%		0.00%		0.00%	4,842	4.01%	5,460	5.73%	10,868	5.30%		0.00%	6,078	6.38%	13,648	3.86%
8	Casual Leave (1/60 & 1/30 of col. (1) of Form-1 and total form 1 to 8)			0.00%		0.00%	9,042	2.92%	2,466	2.04%	2,674	2.81%	5,428	2.65%		0.00%	2,923	3.07%	6,850	1.94%
9	Sick Leave (1/22 of col. (1) of Form-1 and total form 1 to 8)			0.00%		0.00%	7,076	2.29%	6,724	5.56%	7,292	7.65%	14,804	7.22%		0.00%	7,972	8.37%	18,683	5.28%
10	Earned Leave (1/12 & 1/18 of col. (1) of Form-1 and total form 1 to 10)			0.00%		0.00%	13,139	4.25%	13,094	10.83%	14,199	14.90%	28,827	14.06%		0.00%	15,523	16.29%	36,379	10.28%
Total: (Sr. No. 1 to 10)			-	0.00%	-	0.00%	45,342	14.65%	49,327	40.80%	51,580	54.13%	95,183	46.43%	-	0.00%	55,930	58.69%	36,379	10.28%



CONSULTANCY SERVICES FOR 220KV D.I.KHAN-ZHOB TRANSMISSION LINE INCLUDED IN ADB LOAN NO. 3577-PAK TRANCHE-II UNDER NTDC'S OWN RESOURCES

BREAKDOWN OF SOCIAL CHARGES

Firm: NESPAK

Form: NESPAR

			Grade															
Sr. No.	Detailed Description	Refer Income Statement	GM		12		10		9		8 (a)		8 (b)		7		6	
			Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary	Amount certified/ corrected by independent Auditor	% of Basic Salary
1	Medical	Financial Statements Attached in Technical Proposal	6,973	1.70%	6,973	1.70%	6,973	3.73%	6,973	3.73%	6,973	-	6,973	-	6,973	-	6,973	-
2	Welfare Fund Contribution		2,873	0.70%	2,873	0.70%	1,542	0.82%	1,176	0.63%	926	-	796	-	676	-	493	-
3	C.P. Fund		17,813	4.35%	17,813	4.35%	9,558	5.11%	7,293	3.90%	5,739	-	4,874	-	3,380	-	2,463	-
4	Gratuity (Pay/12)		14,844	3.62%	14,844	3.62%	7,965	4.26%	6,078	3.25%	4,782	-	4,062	-	2,816	-	2,053	-
5	Old Age Benefits		650	0.16%	650	0.16%	650	0.35%	650	0.35%	650	-	650	-	650	-	650	-
6	Group Insurance		999	0.24%	999	0.24%	775	0.41%	644	0.34%	560	-	560	-	499	-	499	-
7	Leave Fare Assistance (Pay/12)		14,844	3.62%	14,844	3.62%	7,965	4.26%	6,078	3.25%	4,782	-	4,062	-	2,816	-	2,053	-
8	Casual Leave (1/60 & 1/30 of col. (1) of Form-1 and total form 1 to 8)		7,814	1.91%	7,182	1.75%	3,709	1.98%	2,875	1.54%	2,273	-	1,960	-	3,221	-	2,454	-
9	Sick Leave (1/22 of col. (1) of Form-1 and total form 1 to 8)		21,310	5.20%	19,586	4.78%	10,115	5.41%	7,841	4.19%	6,200	-	5,346	-	4,392	-	3,347	-
10	Earned Leave (1/12 & 1/18 of col. (1) of Form-1 and total form 1 to 10)		41,495	10.13%	38,139	9.31%	19,695	10.53%	15,269	8.16%	12,072	-	10,410	-	5,791	-	4,413	-
	Total: (Sr. No. 1 to 10)			129,615	31.63%	123,903	30.23%	68,947	36.85%	54,877	29.33%	44,957	-	39,693	-	31,214	-	25,398



Firm: BARQAAB

[illegible]

**CONSULTANCY SERVICES FOR 220kV D.I.KHAN-ZHOB TRANSMISSION LINE INCLUDED IN
ADB LOAN NO. 3577-PAK TRANCHE-II UNDER NTDC'S OWN RESOURCES**

BREAKDOWN OF OVERHEAD COSTS

Firm: NESPAK

Sr. No	Detailed Description	Refer Income Statement	Amount certified/ corrected by independent Auditor	As a %age of Basic Salary	As a %age of Basic Salary and Social Cost
1	Over Heads	<i>Financial Statements Attached</i>		100.60	88.76



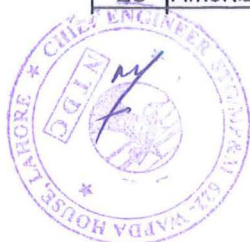
**CONSULTANCY SERVICES FOR 220KV TRANSMISSION LINES INCLUDED IN TRANCHE 3 OF
SECOND POWER TRANSMISSION ENHANCEMENT INVESTMENT PROGRAM FUNDED BY ADB
LOAN NO. 48078-PAK**

BREAKDOWN OF OVERHEAD COSTS

Firm: BARQAAB

**BARQAAB Consulting Services PVT LTD.
Break down of Consultants Overhead Costs (2017-2018)**

S No.	Detailed Description	Amount Certified by Independent Auditors	As a % of Salary
1	Staff salaries and benefits	88,871,196	47.86%
2	Chief executive's remuneration	5,300,197	2.85%
3	Directors Meeting Fee	320,000	0.17%
4	Office maintenance	1,121,741	0.60%
5	Office rent	6,811,608	3.67%
6	Vehicles' hiring and running expenses	12,287,251	6.62%
7	Vehicle insurance	330,076	0.18%
8	Printing and stationery	1,022,798	0.55%
9	SURVEY EXPENSES	1,420,290	0.76%
10	Utilities	1,138,556	0.61%
11	Auditors' remuneration	270,000	0.15%
12	Entertainment	585,738	0.32%
13	Legal and professional	3,588,062	1.93%
14	Traveling and conveyance	934,918	0.50%
15	Fee and subscription	95,164	0.05%
16	Communication	641,399	0.35%
17	Newspaper and periodicals	11,128	0.01%
18	Generator expenses	23,439	0.01%
19	Bank charges	208,834	0.11%
20	Joint venture	418,333	0.23%
21	Donations	1,010,532	0.54%
22	Depreciation	2,227,933	1.20%
23	Amortization of intangible asset	167,902	0.09%



Appendix F

Services and Facilities to be provided by the Client and Counterpart Personnel to be Made Available to the Consultants by the Client

The Client shall make available the following Services and Facilities:

1. Services and Facilities of the Client

The Client shall make available to the Consultants and the Personnel for their purposes of the Services and free of any charge, the services, facilities and property described in this Clause at the times and in the manner specified hereunder:

- (a) The Client shall make adequate arrangements to provide safety of Consultant's staff at the Site.
- (b) Rent will be charged by the Client only for the family status accommodation provided to the Consultant's Personnel, in the Client's colonies, at the Client's standard rates.
- (c) No rent will be charged for single status residences provided by the Client to the Consultants' Personnel.

2. Lodge Accommodation

If requested by the Consultants, the Client shall provide free of cost lodge accommodation, if available, to all Personnel of the Consultant or the Sub consultants when on visit to various parts of the Project area or any other station where such facilities or the lodge accommodation of the Client exists (and provided that the Personnel of the Consultants or the Sub consultants visit that place in connection with the Project) under the same terms and conditions as the Client's staff is entitled.

3. Counterpart Personnel to be made available to the Consultants

The Client shall make available to the Consultant, free of charge, counterpart personnel as required in connection with carrying out of the Services.



Appendix G
(Integrity Pact)

DECLARATION OF FEES, COMMISSION AND BROKERAGE ETC.
PAYABLE BY THE SUPPLIERS OF GOODS, SERVICES & WORKS IN
CONTRACTS WORTH RS. 10.00 MILLION OR MORE

Contract No. _____ Dated December 09, 2019
Contract Value: PKR 171,266,281
Contract Title: Contract for Construction Supervision and Allied Activities including Verification of Contractor's Invoices and Testing & Commissioning of 220kV D I Khan – Zhob Transmission Line (Approx. 220km) included in ADB Loan No. 3577-PAK Tranche-II

The joint venture consisting of the following entities, namely:

1. National Engineering Services Pakistan (Pvt.) Limited (herein after called NESPAK)
2. BARQAAB Consulting Services (Pvt.) Limited (herein after called BARQAAB)

(hereinafter collectively called the "Consultants") hereby declares that it has not obtained or induced the procurement of any contract, right, interest, privilege or other obligation or benefit from Government of Pakistan (GoP) or any administrative subdivision or agency thereof or any other entity owned or controlled by GoP through any corrupt business practice.

Without limiting the generality of the foregoing, the Consultants represent and warrant that it has fully declared the brokerage, commission, fees etc. paid or payable to anyone and not given or agreed to give and shall not give or agree to give to anyone within or outside Pakistan either directly or indirectly through any natural or juridical person, including its affiliate, agent, associate, broker, consultant, director, promoter, shareholder, sponsor or subsidiary, any commission, gratification, bribe, finder's fee or kickback, whether described as consultation fee or otherwise, with the object of obtaining or inducing the procurement of a contract, right, interest, privilege or other obligation or benefit in whatsoever form from GoP, except that which has been expressly declared pursuant hereto.

The Consultants certify that it has made and will make full disclosure of all agreements and arrangements with all persons in respect of or related to the transaction with GoP and has not taken any action or will not take any action to circumvent the above declaration, representation or warranty.

The Consultants accept full responsibility and strict liability for making any false declaration, not making full disclosure, misrepresenting facts or taking any action likely to defeat the purpose of this declaration, representation and warranty. It agrees that any contract, right, interest, privilege or other obligation or benefit obtained or procured as aforesaid shall, without prejudice to any other rights and remedies available to GoP under any law, contract or other instrument, be voidable at the option of GoP.

Notwithstanding any rights and remedies exercised by GoP in this regard, the Consultants agree to indemnify GoP for any loss or damage incurred by it on account of its corrupt



G-1



business practices and further pay compensation to GoP in an amount equivalent to ten times the sum of any commission, gratification, bribe, finder's fee or kickback given by the Consultants as aforesaid for the purpose of obtaining or inducing the procurement of any contract, right, interest, privilege or other obligation or benefit in whatsoever form from GoP.

For and on behalf of

National Transmission & Despatch
Company Limited (NTDC)
(Client)

Signatures _____

Name _____

Title **ASHAR ALI**
Chief Engineer (MP&M) NTDC
8th Floor Shaheen Complex
Egerton Road, Lahore
[Seal]

For and on behalf of Joint Venture of Consultants

(i) National Engineering Services Pakistan
(Pvt.) Limited (NESPAK)

Signatures _____

Name **Nadeem Ashraf**
General Manager / Head
(Power & Mechanical Division/
NESPAK, Nespak House
Lahore
[Seal]

(ii) BARQAAB Consulting Services
(Pvt.) Limited (BARQAAB)

Signatures _____

Name **ENGR. MUHAMMAD ZAFAR**
Executive Director/General Manager (Power)
BARQAAB Consulting Services (Pvt.) Ltd.
Sunny View Wstate, Kashmir Road, Lahore
[Seal]